

The court also observes that counsel listed the address to Madera County Superior Court on form MC-052, which could potentially create a notice issue.

12. S-CV-0054299 Gomez, Hector Ortega v. Entrussed

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action and PAGA settlement. No opposition has been filed.

The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Lab. Code, § 2699(l); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully considered the class action and PAGA settlement agreement and plaintiff's moving papers filed in connection with the motion, the supplemental declaration of counsel and exhibit thereto, as well as the entire court file. The court determines a sufficient showing has been made that the settlement is fair, reasonable, genuine, meaningful, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class for the purposes of settlement as, "all non-exempt employees who are or previously were employed by Entrussed, LLC ("Defendant") in California ("Class") between December 24, 2020 to December 29, 2025 ("Class Period")."

The court preliminarily approves the class action and PAGA action settlement agreement attached as Exhibit A to the declaration of counsel Barvie filed on April 17, 2026.

The court also approves the proposed form of class notice attached to Exhibit A to the declaration of counsel Barvie, with three small changes: The proposed notice references the final approval hearing on page 3 and twice on page 11 and in all three places specifies Department 40. The Department for the final approval hearing shall be Department 32. With this change, the court approves the proposed class notice.

The court appoints and designates Hector Ortega Gomez as the class representative. The court appoints and designates Barvie Law, APC as class counsel for the purpose of settlement. The court appoints and designates Apex Class Action, LLC as the settlement

administrator. The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted on April 17, 2026.

The final approval hearing is scheduled for **January 5, 2027 at 8:30 a.m. in Department 32**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b).

13. S-CV-0054481 Phillips, Torah v. Dupont, Andrew

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

14. S-CV-0055110 Taylor, Alexandria v. K-Love Inc.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to First Amended Complaint

Judicial Notice

Defendants' request judicial notice of the following in support of the demurrer:

1. Plaintiff's original complaint filed on April 23, 2025, which is attached as Exhibit A.
2. The amended and restated articles of incorporation of Educational Media Foundation, establishing itself and K-Love as religious corporations not organized for the private gain of any person, which is on file with California Secretary of State and is attached as Exhibit B.

Defendants' request for judicial notice is granted.

Request for Statement of Decision

Defendants' request for a statement of decision is denied. A ruling on a demurrer is not a trial of a question of fact. (See Code Civ. Proc. § 632.) Nor does the court's ruling constitute an order or judgment in a matter involving a petition to compel arbitration. (See Code Civ. Proc. § 1291.)